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California becomes first state to ban red dye No. 3, found in 12,000+ food products

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(Gray News/TMX) – California has become the first state to ban the controversial red dye No. 3 in foods after Gov. Gavin Newsom signed a bill into law on Saturday.

Red dye No. 3 was one of four food additives banned through the California Food Safety Act. The other three additives banned are potassium bromate, brominated vegetable oil or propylparaben.

The law is scheduled to take effect Jan. 1, 2027.

"Californians trust that the food products they consume are safe," Newsom said in a statement. "The additives addressed in this bill are already banned in various other countries. Signing this into law is a positive step forward on these four food additives until the United States Food and Drug Administration (FDA) reviews and establishes national updated safety levels for these additives."

Propylparabens are antimicrobial preservatives, brominated vegetable oil is an emulsifier used in some sodas that keeps liquids from separating, and potassium bromate helps baked goods rise higher. Red Dye No. 3 is used in thousands of products, including many candies and cake mixes.

According to Consumer Reports, red dye No. 3 has been linked to cancer and has been banned from makeup and cosmetics for more than 30 years, but it has still been allowed in foods.

The bill became heavily associated with the popular candy Skittles because an earlier version of it included banning titanium dioxide, which is found in the candy. However, the final version of the bill does not include titanium dioxide, so Skittles are safe from being banned.

Even so, Newsom used Skittles as an example to point out that there are versions of the candy in other countries without titanium dioxide, proving that popular foods can still be manufactured and enjoyed while adhering to food laws.

"This is demonstrable proof that the food industry is capable of maintaining product lines while complying with different public health laws, country-to-country," Newsom said.

Although Skittles are safe from the equation, plenty of other products will be affected by the ban. Red dye No. 3 is currently found in about 12,000 candies, cereals, sodas and other products.

According to the Environmental Working Group, some popular foods that include red dye No. 3 include:

* Peeps

* Hostess Ding Dongs

* Betty Crocker Fruit by the Foot

* Dubble Bubble chewing gum

* Entenmann's Little Bites

* Vigo Saffron Yellow Rice

* PediaSure Grow & Gain Kids' Ready-to-Drink strawberry shake

* Dole fruit cups

* Brach's Candy Corn

* Jelly Belly candy

* Trolli Sour Crunchy Crawlers

* Archer Farms Hand Decorated Sugar Cookies

* Betty Crocker Loaded Potato Casserole

* Blue Bunny Chocolate Donut Ice Cream

* Brach's Star Brites

* Dippin' Dots Cotton Candy

* Duncan Hines Deliciously Moist Cake Mix

* Yoo-hoo Strawberry Drink

* Necco Wafers

* Pop Tarts Frosted Confetti Cake Bites

The California Food Safety Act was introduced by California Assembly Members Jesse Gabriel and Buffy Wicks in February. According to a statement from Gabriel, each of the newly banned chemicals "is currently banned in the European Union (EU) due to scientific studies that have demonstrated significant public health harms, including increased risk of cancer, behavioral issues in children, harm to the reproductive system, and damage to the immune system."

"It's unacceptable that the U.S. is so far behind the rest of the world when it comes to food safety," Gabriel said in a statement after the bill passed the legislature last month. "This bill will not ban any foods or products – it simply will require food companies to make minor modifications to their recipes and switch to the safer alternative ingredients that they already use in Europe and so many other places around the globe."

The bill also got the endorsement of bodybuilding icon and former California Gov. Arnold Schwarzenegger.

"Things like this aren't partisan. They're common sense," Schwarzenegger said. "I'm a small government guy. But I've also seen that sometimes, in a world where every big industry has an army of lobbyists, and our kids have no one fighting for them, government has to step in."

Newsom pointed out delaying enforcement until 2027 will allow brands plenty of time to reformulate their products.

"Californians will still be able to access and enjoy their favorite food products, with greater confidence in the safety of such products," Newsom said.

Kelly Springer, a registered dietitian based in New York, commended the state for banning red dye No. 3 in packaged foods.

"Bravo to California for banning red dye No. 3, one of numerous unsafe ingredients in packaged food. This ingredient is unnecessary when there are so many natural ingredients that can add color and pizazz to packaged food like purple carrots, beet juice, and turmeric," Springer said.

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